

21NWLC00803 21NWLC00803

County: los-angeles

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Case Number: 21NWLC00803 Hearing Date: June 26, 2026 Dept: Y

21NWLC00803: CAVALRY SPV I, LLC AS ASSIGNEE OF CITIBANK, N.A. vs GERALDINE BONILLA

Tentative Ruling:

The Court has read and reviewed Defendant Geraldina Bonilla's ("Defendant") Motion to Set Aside and Vacate Judgment, the Opposition filed by Plaintiff Calvary SPV I, LLC as assignee of Citibank, N.A. ("Plaintiff") and the Reply filed by Defendant. The Court has also reviewed all relevant court records.

Plaintiff filed the Complaint on January 8, 2021. Defendant made a general appearance when she filed her Answer on February 2, 2021. (Code Civ. Proc., § 410.050, subd. (a).) Once a party has made a general appearance, "[j]urisdiction of the court over the parties and the subject matter of an action continues throughout subsequent proceedings in the action." (Code Civ. Proc., § 410.050, subd. (b).)

Accordingly, Defendant's argument that the judgment is void based on allegedly improper service of the Complaint lacks merit. By filing an Answer, Defendant made a general appearance and thereby submitted to the Court's personal jurisdiction, rendering any objection to defects in service of the Summons and Complaint waived. The Court notes that Defendant's Answer admitted all of the allegations in Plaintiff's Complaint and other than claiming hardship, Defendant failed to assert any affirmative defenses.

Defendant also contends that she was not properly served with Plaintiff's Motion for Judgment on the Pleadings. The record does not support this contention. On November 12, 2021, Plaintiff served the Motion for Judgment on the Pleadings by mail to the address Defendant provided in her Answer.

Code of Civil Procedure section 1005 requires that moving and supporting papers be served and filed at least 16 court days before the hearing. Where service is made by mail within California, the notice period is extended by five calendar days. (Code Civ. Proc., § 1005, subd. (b).)

Plaintiff's service of the motion by mail to Defendant's address of record complied with the statutory notice requirements. Accordingly, Plaintiff's motion was properly noticed, and the Court acted within its jurisdiction in ruling on the motion.

Defendant's contention that the address on file was not "stable" is unavailing. Defendant never provided the Court or Plaintiff with an updated mailing address. California Rules of Court, Rule 2.200, requires that "[a]n attorney or self-represented party whose mailing address ... changes while an action is pending must serve on all parties and file written notice of the change." Defendant failed to comply with this requirement. In the absence of a properly filed and served notice of change of address,

Plaintiff was entitled to serve Defendant at the address of record, and Defendant cannot now challenge the adequacy of service based on her own failure to update her address.

Defendant also relies on Code of Civil Procedure section 473.5 as a basis for vacating the judgment. However, section 473.5 affords Defendant no relief under the circumstances presented here. The judgment was entered following the Court's December 21, 2021 order granting Plaintiff's Motion for Judgment on the Pleadings, not by default or default judgment. Accordingly, section 473.5 provides no basis to vacate either the Court's ruling on the motion or the judgment entered pursuant to that ruling.

Defendant has failed to establish any factual or legal basis warranting relief from the Judgment. Accordingly, Defendant's Motion to Set Aside and Vacate the Judgment is DENIED.

Clerk to give notice.